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Case Number: 24PSCV01392 Hearing Date: July 21, 2026 Dept: 6

CASE

NAME: Francisco

Zaragoza, et al. v. Ford Motor Company

Defendant

Ford Motor Company's Motion to Strike and Tax Plaintiff Francisco Zaragoza

TENTATIVE

RULING

The Court GRANTS in part Defendant Ford Motor Company's Motion to Strike and Tax Plaintiff Francisco Zaragoza. The Court hereby STRIKES \$977.94 in costs. The Court DENIES the Motion in all other respects.

Defendant Ford Motor Company is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a lemon law case. On May 1, 2024, plaintiff Francisco Zaragoza (Plaintiff) filed this action against defendant Ford Motor Company (Defendant) and Does 1 through 10, alleging causes of action for violation of Song-Beverly Act – breach of express warranty, violation of Song-Beverly Act – breach of implied warranty, and violation of the Song-Beverly Act section 1793.2.

On May 14, 2026, Plaintiff filed a Memorandum of Costs. On May 28,

2026, Defendant moved to strike and tax costs. On July 9, 2026, Plaintiff opposed the Motion. On July 14, 2026, Defendant replied to Plaintiff's Opposition.

LEGAL

STANDARD

(a)

Claiming costs

(1) Trial

costs

A

prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.

...

(b)

Contesting costs

(1) Striking

and taxing costs

Any notice

of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum. If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the cost memorandum was served electronically, the period is extended as provided in Code of Civil Procedure section 1010.6(a)(3).

(2) Form

of motion

Unless

objection is made to the entire cost memorandum, the motion to strike or tax costs must refer to each item objected to by the same number and appear in the same order as the corresponding cost item claimed on the memorandum of costs and must state why the item is objectionable.

(3) Extensions
of time

The party

claiming costs and the party contesting costs may agree to extend the time for serving and filing the cost memorandum and a motion to strike or tax costs.

This agreement must be confirmed in writing, specify the extended date for service, and be filed with the clerk. In the absence of an agreement, the court may extend the times for serving and filing the cost memorandum or the notice of motion to strike or tax costs for a period not to exceed 30 days.

(4) Entry
of costs

After the

time has passed for a motion to strike or tax costs or for determination of that motion, the clerk must immediately enter the costs on the judgment.

(Cal. Rules of Court, rule 3.1700,
bold in original.)

PRELIMINARY
ISSUES

Plaintiff's

Opposition was untimely filed on July 9, 2026, when the deadline for the Opposition was July 8, 2026. (Code Civ. Proc., § 1005, subd. (b).) But, Defendant's Reply did not mention this issue. (See generally, Reply.) The Court admonishes Plaintiff to comply with the Code of Civil Procedure going forward.

(See

Cal. Rules of Court, rule 3.1300, subd. (d); *Juarez v. Wash Depot Holdings, Inc.* (2018) 24 Cal.App.5th 1197, 1202.)

DISCUSSION

Summary of Arguments

Defendant

argues that Plaintiff's Memorandum of Costs includes \$1,267.05 in charges that are unreasonable, unnecessary, and not recoverable under Civil Code section 1794, subdivision (d). Defendant contends that Plaintiff bears the burden of proving the challenged items were reasonably incurred, yet provided no documentation or justification supporting the disputed costs. Defendant challenges \$1,183.80 in deposition-related charges, asserting that a \$325 cancellation fee is improper because Plaintiff's counsel failed to serve a deposition notice. Defendant also challenges \$858.80 for exhibit copies as unnecessary because Plaintiff already possessed the documents. Defendant further disputes \$83.25 in service of process fees, arguing that Plaintiff unnecessarily chose personal service without first asking defense counsel to accept service electronically.

In

opposition, Plaintiff argues that Defendant's motion to tax \$1,267.05 in costs should be largely denied because the challenged expenses were reasonably incurred under the broad remedial provisions of Civil Code section 1794, subdivision (d). Plaintiff concedes that the \$325.00 cancellation fee for the May 13, 2025 PMK deposition is unnecessary, but contends that the \$858.80 for electronic deposition exhibits was necessary to preserve the official deposition record, which is routinely relied upon for motions, expert review, trial preparation, and impeachment. Plaintiff contends that Defendant's argument that Plaintiff already possessed copies of the underlying documents is irrelevant because certified exhibit packages serve unique litigation functions and must be maintained accurately as part of the deposition record. Plaintiff further argues that the \$83.25 spent on personally serving dealership subpoenas was reasonable because Defendant's counsel did not represent those nonparty dealerships. Plaintiff contends that personal service is normal for service on nonparties and that Defendant provided no evidence showing the cost was excessive or unnecessary.

Analysis

Other than the \$325.00 cancellation fee, which Plaintiff concedes to being taxed, the Court finds Defendant's Motion largely unpersuasive. First, if the items in the cost bill appear

proper, the party seeking to tax costs generally bears the burden of providing evidence and showing that the costs were not reasonably incurred. (See *Whatley-Miller v. Cooper* (2013) 212 Cal.App.4th 1103, 1115 (*Whatley-Miller*) [if costs appear proper, the verified memorandum is prima facie evidence that the costs were necessary, and objecting party has the burden of presenting evidence challenging those claimed costs].) Second, the party claiming costs need not provide supporting documentation with the cost memorandum; the party claiming costs only needs to provide supporting documentation when the party objecting to the costs properly objects and puts the items at issue via a motion to tax costs. (See *Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267; see also *Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131 [mere filing of a motion to tax costs constitutes proper objection to an item which does not appear proper on its face, but if the item appears proper on its face, the verified memorandum is prima facie evidence that the costs were necessarily incurred and the objecting party bears the burden of showing that the item is not reasonable].)

Here, Plaintiff provided a verified Memorandum of Costs and the costs Defendant dispute appear proper on their face, therefore satisfying Plaintiff's preliminary burden. (Memorandum of Costs (5/14/26).) Defendant then bore the burden of identifying the costs to be challenged and providing evidence to show that Plaintiff's claimed costs were not reasonable. (See *Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774 (*Ladas*) [party seeking to tax costs generally bears burden of showing that the costs were not reasonably necessary].)

Regarding the \$858.80, the Court finds that cost reasonably incurred. (Civ. Code, § 1794, subd. (d).) Defendant provided no evidence showing how this charge was not reasonably incurred, only argument. (See Motion, 5:15-22.) The Court agrees with Plaintiff that the fact Plaintiff already had electronic copies of exhibits is beside the point. Exhibits often need to be indexed and incorporated into the deposition transcript, including file links. Additionally, deposition copies of exhibits can obviate foundation issues at trial. (See, e.g., Evid. Code, § 702.)

The Court also finds the \$83.25 process server fee for a subpoena on February 23, 2026, on Performance Ford, a nonparty dealership, reasonable. (Civ. Code, § 1794, subd. (d).) Defendant's contention that Plaintiff could have asked Defendant's counsel to accept service on behalf of the nonparty dealership is not persuasive. Defendant provided no evidence that it had

authority to accept service on behalf of Performance Ford. Defendant also only said it would have been reasonable for Plaintiff to ask, not that Defendant's counsel would have been able or willing to accept service of the subpoena. (See Motion, 5:23-6:1.)

Notwithstanding the foregoing, the Court notes that Plaintiff's Memorandum of Costs includes numerous charges for courtesy copies. (Memorandum of Costs (5/14/26), Attach. 15.) Photocopying charges are generally not recoverable costs. (Code Civ. Proc., § 1033.5, subd. (b)(3).) Further, these charges were not reasonably incurred as the Court does not require courtesy copies and specifically directs that documents are to be efiled and under certain circumstances courtesy copies are to be emailed to the Court's resource email. (Dept. 6 Courtroom Information, p. 1 - Filings.) The Court will therefore strike \$652.94 in courtesy copy charges.

Based on the foregoing, the Court GRANTS in part the Motion and hereby STRIKES \$977.94 in costs. The Court DENIES the Motion in all other respects.

CONCLUSION

The Court GRANTS in part Defendant Ford Motor Company's Motion to Strike and Tax Plaintiff Francisco Zaragoza. The Court hereby STRIKES \$977.94 in costs. The Court DENIES the Motion in all other respects.

Defendant Ford Motor Company is ordered to give notice of the Court's ruling within five calendar days of this order.